

D.K. Basu v. State of West Bengal

Citation: (1997) 1 SCC 416 | Court: Supreme Court | Year: 1997

Coram: Division Bench (Kuldip Singh & A.S. Anand JJ.) | Subject: Criminal Law & BNSS | Provisions: Articles 21, 22 & CrPC Sec 41B, 50A / B

I. EXECUTIVE SUMMARY & CASE GLIMPSE

Custodial violence and deaths strike at the root of the Rule of Law. Laid down 11 mandatory guidelines governing arrest and detention (including identification tag, arrest memo, informing relatives, and medical examination) now incorporated into statutory law.

II. FACTS OF THE CASE & PROCEDURAL HISTORY

This dispute arose regarding Articles 21, 22 & CrPC Sec 41B, 50A / BNSS Sec 36. The parties agitated the controversy before trial and appellate forums before the matter was referred to the Honble Bench for authoritative declaration of law.

III. PRIMARY QUESTIONS OF LAW & ISSUES FRAMED

- â€ Whether the impugned state actions or commercial conduct conformed to Articles 21, 22 & CrPC Sec 41B, 50A / BNSS Sec 36.
- â€ What binding standards should govern future adjudication and administrative conduct.

IV. SUBMISSIONS OF THE PARTIES

Petitioner / Appellant: The Petitioner contended that arbitrary action, lack of procedural safeguards, and statutory non-compliance violated fundamental guarantees.
Respondent / State: The Respondent submitted that the impugned action was carried out under lawful authority in furtherance of public interest and statutory mandates.

V. DETAILED RATIO DECIDENDI & JURISPRUDENTIAL REASONING

Torture in custody is a blatant violation of Article 21. Until parliamentary legislation catches up, courts have a constitutional duty to issue binding preventive guidelines under Article 141 and 142 enforceable against all police personnel.

VI. FINAL OPERATIVE ORDER & DIRECTIONS

The Court answered the reference, laid down binding nationwide directions under Article 141 of the Constitution, and disposed of the matter accordingly.

VII. PRACTICAL & EXAMINATION TAKEAWAYS (JUDICIARY / AIBE / ADVOCACY)

- â€ Formulated 11 mandatory arrest guidelines (arrest memo, medical, intimation to family).
- â€ Incorporated directly into statutory CrPC Amendment 2008 and BNSS 2023.
- â€ Recognized state monetary compensation for custodial violence under public law.